

EXHIBIT 11

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

In the Matter of

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-_____

DECLARATION OF CHRISTOPHER MARTINEZ

I, Christopher Martinez, hereby declare as follows:

1. I am Director, Services Product Management, and Product Manager, Health, in the Mobile Experience (“MX”) Division at Samsung Electronics America, Inc. (“SEA”). I started with Samsung in 2009 at Samsung Telecommunications America (“STA”), which merged into SEA in January 2015. Before my current position, I worked as Head of Mobile Category Management, National Retail; Director, IoT Product Management; Director, Content & Services; Senior Manager, Strategy, and Manager, Strategy. I submit this declaration in support of Samsung’s complaint in connection with the above-referenced matter. I have personal knowledge of the facts stated herein or have been informed of such by knowledgeable personnel.

2. SEA is headquartered in Englewood Cliffs, New Jersey, USA, and is a subsidiary of Samsung Electronics Co., Ltd. (“SEC”) (collectively, SEA and SEC are referred to as “Samsung” herein), located in South Korea. SEA supplies mobile products and services, wearables, and consumer electronics products and services in the United States market. In doing so, SEA is involved in numerous development and commercialization activities, including engineering, research, development, testing, customer service, importation, sales, marketing, and distribution of products in the United States, including wearables and smart phones. SEC is one of

[REDACTED]

the largest providers by volume of wearables and smartphones in the world, and SEA is one of the top providers by volume of wearables and smartphones in the United States.

3. SEA has over 40 facilities across the U.S. and employs thousands of personnel tasked with commercializing U.S. products, including its smartphones, wearables, and smartrings in the U.S. For example, SEA has facilities in New Jersey, New York, California, Texas, Washington, Kansas, Georgia, Illinois, South Carolina, Minnesota, and the District of Columbia. As of November 2025, SEA employed approximately 4000 U.S.-based full-time employees involved in commercializing Samsung’s U.S. products.

4. [REDACTED]

[REDACTED]

[REDACTED]

5. I understand that the subject matter of the complaint is directed to Samsung’s wearable products, including the following smartwatches (and all variants thereof): Galaxy Watch4, Galaxy Watch5, Galaxy Watch6, Galaxy Watch7, and Galaxy Watch8. I will use the term “Galaxy Smartwatches” in this declaration to describe the products listed above. I also understand that there are no differences among the Galaxy Smartwatches pertinent to this matter.

6. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

[REDACTED]

7. I understand Samsung is asserting four patents in its complaint, namely, U.S. Patent Nos. 10,642,359, 10,945,677, 10,231,675 and 10,978,789.

8. I also understand that, for at least 3 of the patents, the subject matter is further directed to Samsung's Galaxy Ring products. I will use the term "Galaxy Rings" in this declaration to describe the Galaxy Ring products. I also understand that there are no differences among the Galaxy Rings pertinent to this matter.

9. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

10. I also understand that, for at least 1 of the patents, the subject matter is further directed to Samsung's Galaxy S24 and S25 lines of mobile phones. I will use the term "Galaxy Phones" in this declaration to describe the Galaxy S24 and S25 mobile phones. I also understand that there are no differences among the Galaxy Phones pertinent to this matter.

11. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]



12. In this Declaration, I will use the term “Galaxy DI Products” to mean the Galaxy Smartwatches, Galaxy Rings, and Galaxy Phones.

13. SEA has invested and continues to invest in its mobile products through, for example, investments in its headquarters in Englewood Cliffs, New Jersey; mobile engineering, research and development, product management, product strategy, retail operations, customer service, repair, and service operations out of its facilities in Plano, Texas; mobile content and services out of its facility in Mountain View, California; mobile network operations and mobile quality lab testing out of its facilities in Berkeley Heights, New Jersey; Bellevue, Washington; and Plano, Texas; and numerous other facilities around the U.S. These SEA operations and facilities provide a combination of product strategy, management, planning, research, development, engineering, testing, compliance, quality control, technical support, service, warranty, repair, and replacement for Samsung mobile products in the U.S., including the Galaxy DI Products.

14. SEA also employs U.S.-based engineers and other personnel who provide product strategy, management, planning, research, development, and engineering to help commercialize mobile products—including the Galaxy DI Products—that will work in the U.S. market. SEA further invests in U.S.-based personnel who provide testing, compliance, quality control and marketing to create and deliver market-ready mobile products, including the Galaxy DI Products. SEA also invests in U.S.-based personnel who provide technical support, service, warranty and repair to Samsung mobile customers in the U.S. who have purchased Samsung’s mobile products, including the Galaxy DI Products.

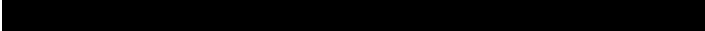
15. SEA and its engineers and other personnel collaborate with SEC on the planning, research and development of Samsung’s mobile products, including the Galaxy DI Products.



Among other responsibilities, SEA's engineers and other personnel distributed across multiple groups within SEA:

- work with U.S. carriers to define system requirements and specifications for Samsung's mobile products and to understand U.S. carriers' unique system requirements for Samsung's mobile products, including the specific environments equipment will enter;
- customize mobile products for each U.S. carrier;
- perform testing in the U.S. to ensure the product software and hardware will work in the U.S., and the products will be able to properly communicate with devices of other brands;
- perform testing to ensure a high-quality user interface and user experience in Samsung's mobile products;
- evaluate Samsung's mobile products to determine features and functionalities of those products that influence consumer demand and coordinate closely with global R&D and Product Planning groups to shape the features and functionalities included in future Samsung mobile products in the U.S.;
- research, develop, implement, and commercialize exclusive content and services for Samsung's mobile products, including mobile wallet applications, mobile security applications, and a host of other applications for mobile products;
- confirm Samsung's mobile products function on the appropriate U.S. networks, identify and resolve bugs, and address other technical issues;
- provide technical training to U.S. carriers' training organizations and educate both carriers and retailers as to the functional aspects and operability of each mobile product;
- work with U.S. carriers and retailers to address performance issues and to implement enhancements to Samsung's mobile products to ensure performance is maintained or improved;
- validate all new software in Samsung's mobile products prior to its release to customers;
- package Samsung's mobile products,¹ which can include matching SIM cards with mobile products and flashing software to mobile products;
- distribute Samsung's mobile products;
- sell and market Samsung's mobile products in the U.S.;

¹ Before products are packaged, the products are stored in a foreign trade zone. After the products are pulled from storage for packaging and distribution, the products enter the Customs territory of the United States. Packaging and distribution activities occur at SEA's facilities in the United States.

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- provide service, warranty, repair, and quality control for Samsung's mobile products; and
 - support and direct Samsung's supply chain for Samsung's mobile products in the U.S.

Product Management

16. SEA's mobile product management is generally grouped by function. The first functional group, which primarily consists of mobile carrier teams and historically has been known as the Product Management Team,² is involved with developing and planning processes for Samsung's mobile products. All of these employees are based in the United States, with these carrier teams frequently located near the largest U.S. wireless carriers' main facilities in Berkley Heights, New Jersey; Bellevue, Washington; and Atlanta, Georgia. Members of this group are also based in the Dallas, Texas area and Englewood Cliffs, New Jersey area.

17. SEA's mobile U.S. carrier teams serve as the conduit for all communications and workflow between Samsung's research and development labs and the U.S. wireless carriers. They are involved in the planning and development of soon-to-be-released Samsung mobile products, and act as project managers for each mobile product developed for sale in the U.S. In a nutshell, the mobile carrier teams shepherd mobile products from concept and road-mapping to commercial release to post-launch quality assurance. They also coordinate post-launch quality assurance testing and work with SEA's various R&D teams—including Mobile Network Operators Labs ("MNO") and Mobile Quality Labs ("MQL") to troubleshoot and implement product updates and bug fixes.

² Certain SEA financial documents refer to these mobile carrier teams under the "Product Management Team" category.

[REDACTED]

18. As of November 2025, approximately 14 regular full-time personnel worked with wireless carriers on product management for Samsung mobile products to ensure, among other things, that these products meet the carrier's numerous technical requirements, pass necessary tests, and launch on schedule.

19. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

20. The second functional product management group participates in mobile product strategy, planning, and commercialization of Samsung's mobile products, including the Galaxy DI Products. Among other activities, these employees:

- evaluate and test Samsung's mobile products—including the user experience with the products—pre- and post-launch to better understand how to meet consumer needs in the U.S. market;
- conduct and evaluate consumer surveys on Samsung's mobile products sold in the U.S. to determine which features and functionalities of the products influence consumer purchasing decisions;
- regularly coordinate with SEC's Mobile R&D and product planning groups and utilize their extensive research and investigation into consumer purchasing decisions in the U.S. to shape features and functionalities that will appear in future mobile products, including the features and functionalities in the Galaxy DI Products;
- perform quality control analyses for Samsung mobile products sold in the U.S., which includes (among other things) evaluating SEA-commissioned third-party technical research into Samsung's mobile products sold in the U.S. and providing recommendations to Samsung's global mobile R&D and product planning teams with respect to alterations in Samsung's mobile products sold in the U.S.;
- coordinate the launch and commercialization of Samsung's mobile products through frequent interaction with virtually every division within SEA.

[REDACTED]

21. As of November 2025, approximately 57 regular full-time employees worked on the aforementioned activities related to mobile products.

22. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Research & Development

23. SEA's research and development activities include the Mobile Network Operators Labs ("MNO") and Mobile Quality Labs ("MQL"), which are described in more detail below.

24. The MNO Labs provide mobile R&D work. Within MNO, there are numerous sub-groups, including San Diego Lab, User Experience, Applications WA, AFF-North America MNOs Lab, and Solutions. The solutions team has multiple sub-teams and is responsible in the U.S. for development of US Mobile Network Operator specific solutions like Wi-Fi Calling, Device Management & Software Upgrade Client, and Lab Conformance/Interoperability Testing. Various MNO Labs are located near main U.S. wireless carriers' primary facilities in Berkley Heights, New Jersey; Bellevue, Washington; Dallas, Texas; and San Diego, California. MNO Labs work on a variety of R&D projects, including the development and implementation of carrier-specific user interface and software customizations to mobile products sold in the U.S. In addition, MNO engineers and other personnel are involved in conformance testing and interoperability testing, in conjunction with SEA's Reverse Logistics Team and Product Management. As with product management, MNO activities are necessary in order to fulfill U.S. carrier demands and to bring to market mobile products that function in the U.S. on carrier networks.

[REDACTED]

25. Like many of the MNO Labs, SEA’s MQL teams are frequently located near each U.S. wireless carrier’s primary facilities, including MQL-TX, MQL-NJ, and MQL-WA. MQL is involved in a variety of pre- and post-launch hardware, software, and network testing of all Samsung mobile products sold in the U.S. to ensure the products’ operability on U.S. wireless networks (commonly known as “field testing”) and the functionality of various product features. MQL also works closely with each carrier in the U.S. to guide Samsung’s mobile products through the carriers’ product validation and compliance procedures. After a product is launched, MQL teams continue to test products to identify and address software performance and other quality issues, including post-launch software updates and quality assurance over the life of a mobile product. Typically, MQL will test multiple versions of a particular model before it is sent to the U.S. carrier for lab testing. Ultimately, MQL personnel work both with Samsung’s global R&D division during mobile product development and with U.S. carriers to ensure that Samsung’s mobile products can pass certification and compliance testing and products will work as intended in an efficient manner on the individual U.S. carrier’s network. In addition, MQL personnel perform quality assurance work, including having the primary responsibility for investigating post-launch bugs and working with the engineering teams to resolve issues.

26. As of November 2025, approximately 239 regular full-time employees worked in SEA’s R&D labs, including MNO and MQL labs, across the U.S. related to mobile products.

27.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Content & Services

28. SEA’s Content & Services³ division—which is primarily located in Mountain View, California—focuses on content and services for SEA products sold in the U.S., including a primary focus on mobile products such as the Galaxy DI Products. For example, C&S performs significant research, development and product management associated with Samsung mobile product functionalities such as Samsung Pay and the Samsung Galaxy Apps store, among others.

29. As of November 2025, approximately 381 regular full-time employees worked in C&S related to mobile products.

30. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Retail Operations Team

31. SEA’s Retail Operations Team (“ROT”) is engaged in marketing and training relating to Samsung’s U.S. wireless products. The ROT provides technical training to U.S. carriers’ and retailers’ training organizations and educates carriers and retailers as to the functional aspects of the products. The ROT also performs validation testing to ensure that carriers and retailers are properly trained as to the features and operability of each Samsung product. All personnel in the ROT are located in the U.S.

32. As of November 2025, SEA employed approximately 193 regular full-time employees who are responsible for training the carriers’ and retailers’ sales and service teams prior

³ This division is currently called the North American Services Business (“NASB”), but it is referred to as “Content & Services” in the SEA financial data produced along with this declaration.

[REDACTED]

to each launch in order to handle customer calls and inquiries and perform part of the repair and diagnostic work. This training is done at an individual store level.

33. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Service & Repair Organization

34. SEA's Service and Repair Organization ("SRO") and Mobile Customer Service Organization ("MCS") provides customer care, service, warranty, repair and quality control for Samsung's products, including its mobile products sold in the U.S. market. SEA's customer service and repair personnel are involved in numerous aspects of ensuring that Samsung's customers are satisfied. These activities include, among other things, interfacing with Samsung customers to provide technical or other support, enhanced in-person customer support through programs such as Samsung Care+, physical repair of products returned either directly to Samsung or its service partners or through a U.S. carrier or retailer channel, and working with mobile Product Management teams to monitor and improve product quality post-launch. If a significant or unusual problem is encountered, SEA and its third-party vendors will analyze the problem and provide their analysis to the development teams for further investigation.

35. In the product repair process, SEA will typically receive a mobile product from its U.S. carrier, retail partners, or directly from individual consumers. U.S. carriers typically receive products for evaluation and repair from end customers, who return products to the U.S. carrier and receive replacement products. SEA then receives the product in need of repair from the U.S. carrier, attempts to locate and correct any defects, and returns the product to the U.S. carrier.

[REDACTED]

36. SEA service-networks perform product validation, repair, cosmetic refurbishment, software upgrade/reflash, and quality control verification on Samsung’s mobile products. Carrier warranted and non-warranted returns require repair and refurbishment, which is performed in a Private Service Center (PSC) network on an exclusive basis or by an Authorized Service Center (ASC) network that contracts directly with carriers, retailers or insurers to provide non-warranted services. A third channel supports Direct-To-Customer services and comprises mail-in depots (operating on a PSC basis), retail based walk-in networks of ASCs, and a network of Independent Service Providers.

37. SEA’s authorized and independent repair network has hundreds of facilities/contractors performing repairs on SEA products.

38. In addition to service and repair of SEA’s mobile products, SRO is responsible for training U.S. carrier call centers with respect to customer support and the triage and repair diagnostics for Samsung’s mobile products, including the Galaxy DI Products.

39. As of November 2025, approximately 114 regular full-time employees involved in post-launch customer service, quality assurance, repair and service-related activities related to mobile products. In addition, as noted above, SEA’s authorized service and repair vendors employ hundreds of locally hired personnel in the U.S.

40. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Supply Chain Management Organization

41. SEA does not manufacture the products it helps develop and commercialize for the U.S. market. SEC or its subsidiaries manufacture the mobile products sold in the U.S. in Korea,

[REDACTED]

China, and Vietnam, and SEA imports them into ports located in Dallas, Texas and Chicago, Illinois. Every product entered for consumption into the U.S. in Chicago is both manufactured and packaged prior to shipment from the factory, but that is not the case with SEA's Coppell, Texas facility. SEA's Packaging and Distribution Organization ("MPC"), situated primarily in Coppell, Texas, is involved in the packaging and distribution of Samsung's mobile products, including the Galaxy DI Products. MPC works with the U.S. carriers to understand how the U.S. carrier wishes to show the mobile product at the point of sale, packages the mobile product in Coppell, Texas, and distributes the mobile product to U.S. carriers and retailers.

42. SEA's packaging activities (performed by contractor RSI) may include matching a product with a SIM card. In some instances, the product is placed in a U.S. carrier-branded box with accessories and any accompanying product manuals. For certain products, MPC matches the SIM card with the product and electronically sends that information to the U.S. carrier so when a consumer purchases the product, it can be activated.

43. MPC also flashes U.S. carrier-specific software to mobile products. This operation permits SEA to import bulk mobile products and then convert them to U.S. carrier-specific products in the Coppell, Texas Foreign Trade Zone.

44. SEA's facility in Coppell, Texas also operates a distribution center. SEA also outsources some of this distribution work for mobile products to a company called Geodis. These SEA and Geodis employees involved in outbound logistics generally work across Samsung's mobile product line sold in the U.S., and the level of their activity with respect to specific products is largely driven by sales volume.

[REDACTED]

45. As of November 2025, SEA employed approximately 62 regular full-time employees relating to SEA's supply chain management activities, including mobile product packaging and outbound logistics activities.

46. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

I declare under penalty of perjury under the laws of the United States of America that the
12/12/2025 | 9:52:54 AM PST
foregoing is true and correct. Executed December ____, 2025.

By:

Signed by:

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Christopher Martinez